



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Brandon T. Gilchrist
Subject: PUDC-24-194 | Lot 1, Block 1 Cheyenne Business Parkway – Zoning Map Amendment
Date: November 12, 2024

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 11/12/2024
- Public Services Committee 11/19/2024
- Second reading 11/25/2024
- Public Services Committee 12/03/2024
- Third and final reading 12/09/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their November 4, 2024 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM AG AGRICULTURAL AND HI HEAVY INDUSTRIAL TO AG AGRICULTURAL FOR LAND LOCATED SOUTH OF CAMPSTOOL RD AND NORTH OF INTERSTATE 80."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on November 4, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1 Cheyenne Business Parkway Thirteenth Filing, Cheyenne, Wyoming, is hereby changed to AG Agricultural.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION NOVEMBER 4, 2024 STAFF REPORT

FILE: PUDC-24-194: Lot 1, Block 1 Cheyenne Business Parkway Thirteenth Filing, – Zoning Map Amendment

REQUEST: A request to rezone approximately 38.04 acres of land from a mix of AG Agricultural and HI Heavy Industrial to AG Agricultural.

LOCATION: North of I-80, west of the I-80 and Campstool Road interchange

APPLICANT: Brad Emmons, AVI PC

AGENT: AVI PC

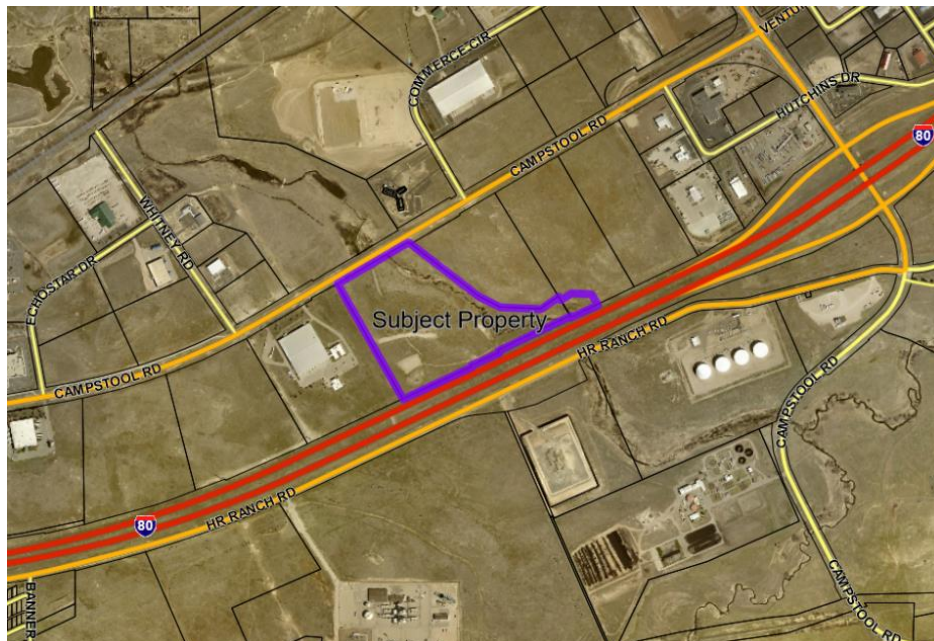
OWNER: Cheyenne LEADS

ZONING: AG Agricultural and HI Heavy Industrial

FUTURE LAND USE: Open Space and Parks and Industrial

PURPOSE: To modify the zoning in accordance with a lot line adjustment.

PREPARED BY: Brandon T. Gilchrist, Planner I



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot1 Block 1 Cheyenne Business Parkway, 13th Filing, Cheyenne, Wyoming to AG Agricultural as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

The parcel is part of a lot line adjustment. The parent parcels are zoned HI Heavy Industrial on the east and AG Agricultural on the west. The AG parcel is essentially obtaining part of the HI parcel. As it is not best practice to have properties with multiple zones, the area added to the AG parcel should also be zoned AG.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Open Space and Parks, Industrial	AG Agricultural, HI Heavy Industrial	Vacant, natural creek bed
North	Open Space and Parks, Industrial	AG, HI	Vacant, Employment
South	Mixed-Use Employment	HI	Oil and Gas Extraction
East	Industrial	HI	Vacant
West	Industrial	HI	Vending Machine Supplier

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

According to the Future Land Use Map, the majority of the site is planned for Open Space, Parks. This designation is intended to include natural/cultural resource areas, and is expected to include conservation purposes. This property has a creek and a floodplain.. The proposed zoning change from a mix of AG Agricultural and HI Heavy Industrial to entirely AG Agricultural aligns with the goals of Plan Cheyenne.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

The neighborhood is currently zoned for Agricultural and Heavy Industrial uses. However, according to the Future Land Use Designation, the site in question is designated as Open Space, while the surrounding areas are planned for Industrial Districts, Open Space, and Mixed-Use Employment Emphasis. The current zoning of a majority of the parcel is AG Agricultural, and it is not best practice to have parcels with more than one zone. Therefore, changing the zoning of the site from a mix of AG Agricultural and HI Heavy Industrial to entirely AG aligns with the Future Land Use Designation and complies with review criteria 2.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The proposed zoning change is suitable because it allows the entire site to be unified under a single zoning district. Since the section which is changing from HI Heavy Industrial is within a floodplain, development in that area is not permitted.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

Both the AG Agricultural and the HI Heavy Industrial zones do not have maximum block sizes, and therefore is unparsed by this criterion.

The proposed zone change for the subject property **complies** with review criterion 4.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The AG Agricultural zoning is designed for agricultural uses and the preservation of lands in their natural state, with minimum investments in infrastructure. This zoning change will initially require minimal public infrastructure, adhering to rural-level standards. The AG District is suitable for areas where it is important to protect significant natural lands or open spaces, aligning with the Agriculture/Rural or Rural Residential categories in the Cheyenne Comprehensive Plan.

The proposed zone change for the subject property **complies** with review criterion 5.

- 6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)**

The proposed zoning change is suitable because it allows the entire site to be unified under a single zoning district. Since the section currently zoned HI Heavy Industrial is within a floodplain, development in that area is not permitted.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The AG zone is appropriate based on the future land use map, surrounding zoning, and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant.
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

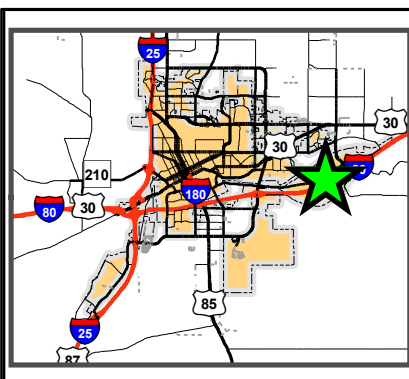
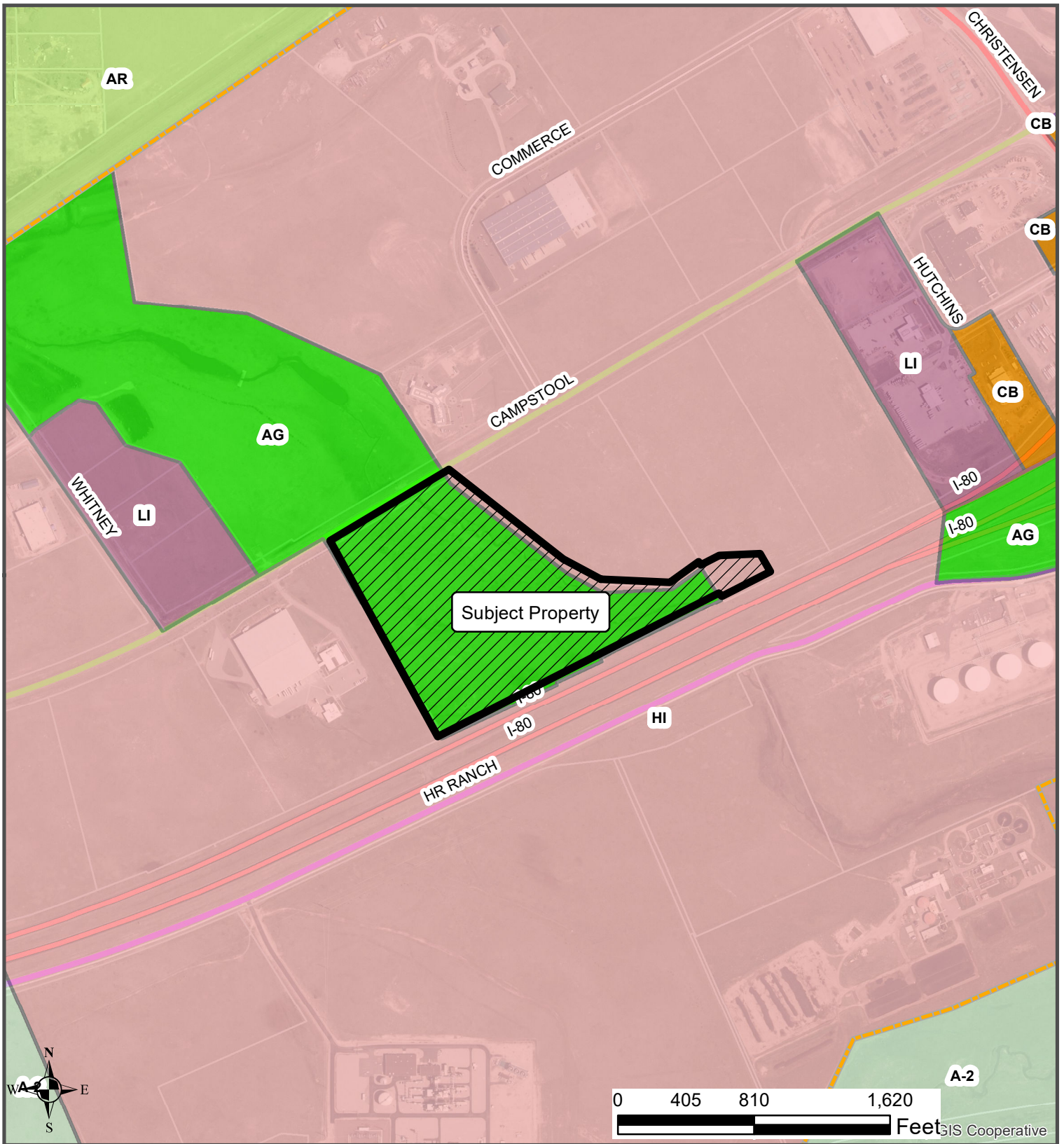
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from AG and HI to AG.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

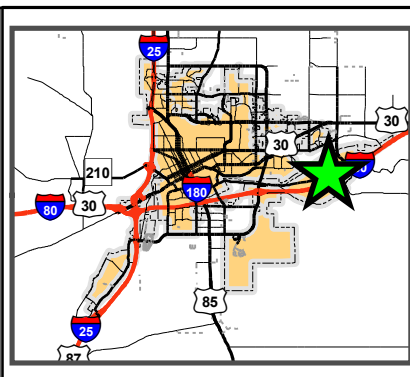
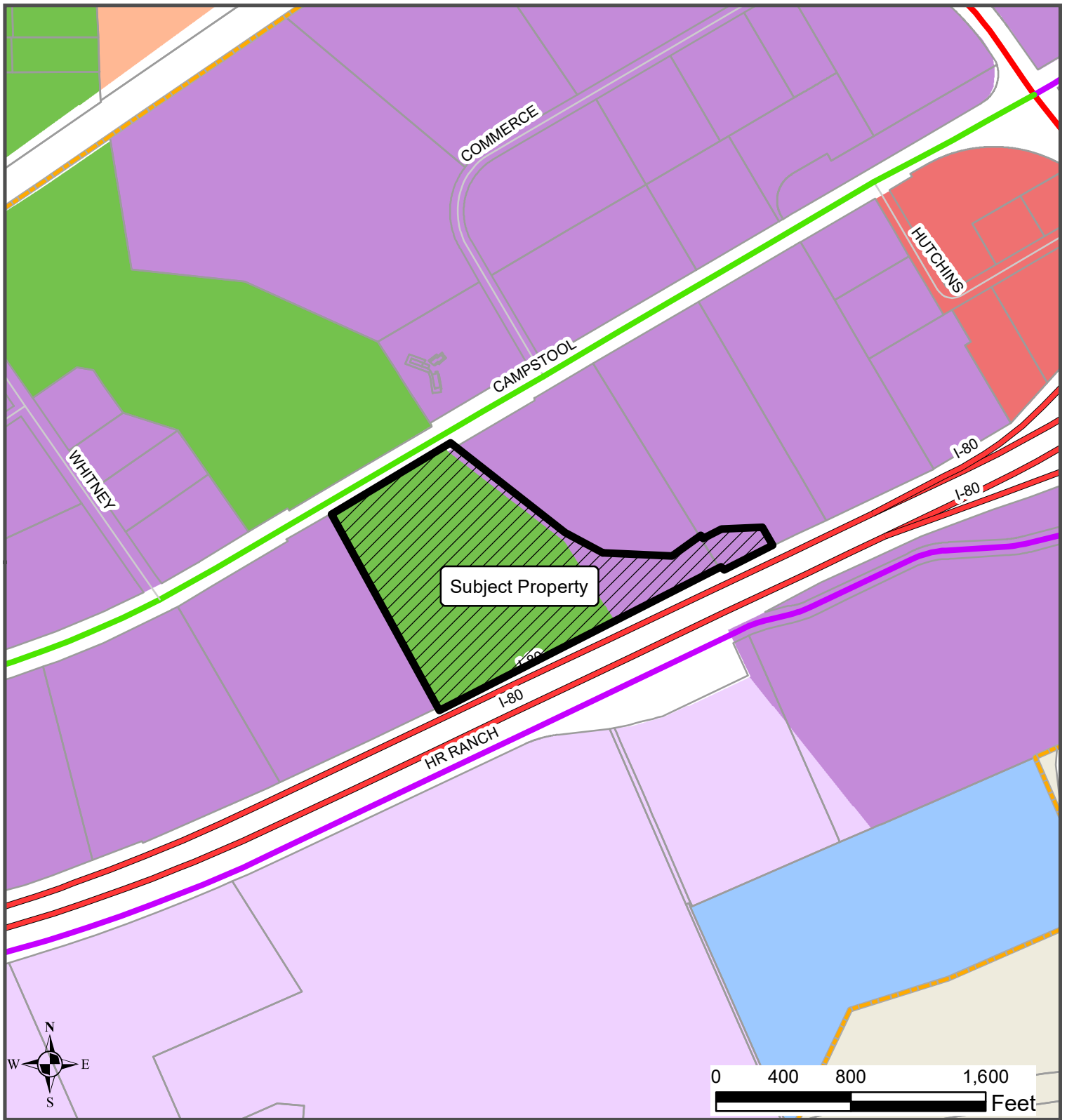


Attachment 1: Zoning Map PUDC-24-194

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- Nov19_CityLimits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built
- HR / High Density Residential
- MR / Medium Density Residential
- LR / Low Density Residential
- NR-2 / Neighborhood Residential - Med. Density
- NR-3 / Neighborhood Residential - High Density
- AR / Agricultural Residential
- A-1 / Agricultural and Rural Residential
- A-2 / Agricultural
- AG / City Agricultural
- MUR / Mixed Use Residential Emphasis
- CBD / Central Business District
- CB / Community Business
- NB / Neighborhood Business
- MU / Mixed Use - County
- MUB / Mixed Use Business Emphasis
- MUE / Mixed Use Employment Emphasis
- HI / Heavy Industrial
- LI / Light Industrial
- P / Public
- AD / Airport District
- PUD / Planned Unit Development
- X / Exempt



Attachment 2: Land Use Map PUDC-24-194

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

PUDC-24-194

Zoning Map Amendment
Status: Active
Submitted On: 10/9/2024

Primary Location

0 CAMPSTOOL RD
Cheyenne, WY 82007

Owner

CHEYENNE LEADS
PO BOX 1045 CHEYENNE, WY

Applicant

 AVI PC
 307-637-6017
 avi@avipc.com
 1103 Old Town Lane #101
Cheyenne, WY 82009

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* 	Proposed Zoning* 
Cheyenne Business Park 13th Filing	AG Agricultural

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Christine Johnson
Oct 9, 2024

Attachments

Draft Neighbor Notification Letter

REQUIRED



neighbor-notification-letter cbp13.docx
Uploaded by AVI PC on Oct 9, 2024 at 4:28 PM



Neighbor Notification List
Adjacent Owners.xlsx
Uploaded by AVI PC on Oct 9, 2024 at 3:56 PM

REQUIRED



Photos of Posted Notice
thumbnail_image002.jpg
Uploaded by Brandon Gilchrist on Oct 25, 2024 at 3:13 PM



Mailed Notice
AVI Zone change For Lot 1 Block 1.pdf
Uploaded by Brandon Gilchrist on Oct 18, 2024 at 3:06 PM



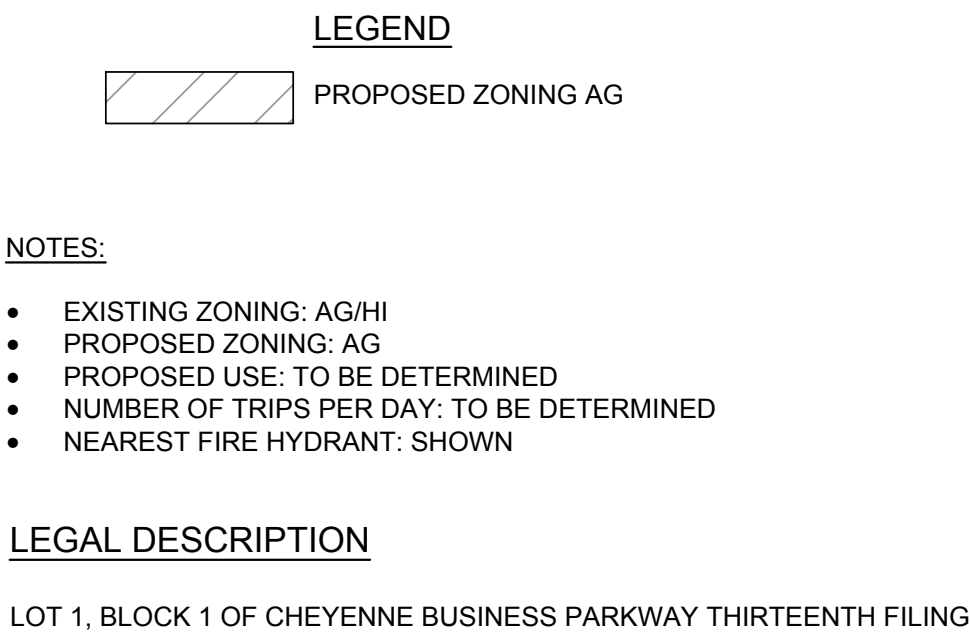
Letter of Authorization
cbploa13_001.pdf
Uploaded by AVI PC on Oct 9, 2024 at 2:49 PM

REQUIRED



Proposed Zoning Map
4931 ZONE CHANGE.pdf
Uploaded by AVI PC on Oct 9, 2024 at 5:07 PM

REQUIRED



PROJECT: CHEYENNE BUSINESS PARKWAY 13TH FILING		PREPARED FOR: CHEYENNE LEADS 121 W 15TH ST STE 304 CHEYENNE, WY 82009		NO.		REVISION		DATE	
DRAWING TITLE: ZONE CHANGE MAP									
 45 YEARS ENGINEERING · PLANNING · SURVEYING		307.637.6017 1103 OLD TOWN LANE, SUITE 101 CHEYENNE, WY 82009 AVI@AVIPC.COM							
DATE: Oct 09, 2024									
DRAWN BY:									
DESIGNED BY:									
CHECKED BY:									
JOB NO.: 4931									
DRAWING NO. 1 OF 1									